

## 26VECV02082 26VECV02082

County: los-angeles

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Department: 107

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Case Number: 26VECV02082 Hearing Date: August 3, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Juana Alicia Vasquez

Ruiz,

Plaintiff,

v.

Group I El Monte

Properties, LTD, et al.

Defendants.

Case Number Department

26VECV02082 107

COURT'S [TENTATIVE]

ORDER RE:

## Demurrer with Motion to Strike

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Overrule the demurrer; (2) Deny  
the motion to strike.

I.

### BACKGROUND

This

is a landlord-tenant dispute. Plaintiff Juana Alicia Vazquez Ruiz ("Plaintiff") has been a tenant at 9000 Orion Avenue Apt. 26, North Hills, CA 91343 (the "Property") since November 2017. (Complaint ¶ 2.)

On

April 8, 2026, Plaintiff filed a complaint against Defendants Group I El Monte Properties, LTD, Spartan Village APTS. 0340, LP, and Does 1 through 20, alleging causes of action for: (1) statutory breach of the warranty of habitability (Civil Code sections 1941, 1941.1); (2) breach of implied warranty of habitability; (3) violation of Civil Code section 1942.4 (35 days); (4) violation of Civil Code section 1942.5 (retaliation after complaint being made); (5) negligence; (6) nuisance; (7) intentional infliction of emotional distress; (8) breach of contract; (9) breach of the covenant of quiet enjoyment; (10) breach of the covenant of good faith & fair dealing; (11) violation of Business Professions Code section 17200, et seq; and (12) violation of LAMC section 45.33.

On

May 14, 2026, Plaintiff filed an amendment to complaint identifying Defendant Doe 1 as Michael Nijjar.

On

June 17, 2026, Defendant Michael Nijjar ("Defendant") filed a demurrer with motion to strike. On July 21, 2026, Plaintiff filed oppositions. On July 24, 2026, Defendant filed replies.

II.

### REQUEST

FOR JUDICIAL NOTICE

Plaintiff

requests the court take judicial notice of Complaint for Permanent Injunction, Civil Penalties, Restitution, Disgorgement, and Other Equitable Relief filed by the People of the State of California, by and through Attorney General Rob Bonta, against Swaranjit Nijjar a/k/a Mike Nijjar, Group I El Monte Properties, Ltd., Spartan Village Apts. 0340, LP, and other defendants, dated June 12, 2025 (the "Attorney General Complaint"). (Request for Judicial Notice pp. 1-2.)

The court may

decline to take judicial notice of materials that are not "necessary, helpful, or relevant." (Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison (1998) 18 Cal.4th 739,748, fn. 6.) The

Attorney General Complaint is not necessary, helpful, or relevant to the court's ruling on the demurrer. Plaintiff's request for judicial notice is denied.

III.

#### TIMELINESS

"A person against

whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint." (Code Civ. Proc., §430.40, subd. (a).) Per Code of Civil Procedure section 435, subdivision (b)(1), a motion to strike should also be filed within 30 days after service of the complaint. (See Code Civ. Proc., § 412.20, subd. (a)(3).)

Per Code

of Civil Procedure section 1005, subdivision (b), moving papers must be filed at least 16 court days before they are set for hearing, oppositions must be filed at least nine court days before the set hearing, and replies must be filed at least five court days before the set hearing.

Electronic service extends the deadline

by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Plaintiff served Defendant's counsel with

the amendment to complaint by electronic transmission on May 14, 2026.

(Amendment to Complaint pdf p. 2.) Defendant filed the demurrer with motion to strike more than thirty days, plus two court days for electronic service, after

May 14, 2026. Thus, the demurrer with motion to strike was untimely under Code of Civil Procedure sections 430.40 and 435.

“A trial court has broad discretion to accept or reject late-filed papers.” (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210, brackets removed.) The court will exercise its discretion and consider the demurrer with motion to strike.

The demurrer with motion to strike, oppositions, and replies were timely filed under Code of Civil Procedure section 1005.

IV.

MEET

AND CONFER

California Code of Civil

Procedure section 430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” before the filing of a demurrer to attempt to informally resolve the objections raised in the demurrer. The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc. § 430.41, subd. (a)(3).)

California

Code of Civil Procedure section 435.5, subdivision (a) also requires parties to meet and confer before filing a motion to strike.

Defendant’s counsel

submits declarations stating they met and conferred with Plaintiff’s counsel by telephone, but the parties were unable to reach a resolution. (Do Declaration (Demurrer) ¶¶ 2-4; Do Declaration (MTS) ¶ 2.) Defendant satisfied the meet and confer requirements.

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V.

DEMURRER

a. Legal Standard

"A demurrer tests the pleading alone, and not the evidence or the facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. ("E-Fab") (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The court also considers "judicially noticed matters." (Id.) A complaint must contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1).) A "complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts." (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

;

A party may demur to a complaint or cross-complaint because it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e).)

b. Discussion

Defendant

demurs to all twelve of Plaintiff's causes of action. (Demurrer pp. 2-3.) Defendant argues each cause of action fails to state facts sufficient to state causes of action because Plaintiff "improperly lumps [Defendant] together with the other Defendant, without articulating any specific conduct he undertook personally." (Demurrer pp. 2-3, 5.) Defendant argues Plaintiff fails to allege facts supporting personal liability against Defendant. (Demurrer pp. 5-6.)

In

opposition, Plaintiff argues she sufficiently alleges that "Defendants, and each of them, participated in the acts and omissions alleged; acted as agents of one another; authorized and ratified the conduct; owned, managed, operated, and/or controlled the Property; constituted landlords under the lease; knew of Plaintiff's occupancy; received notice of the defects; failed to repair; and continued collecting rent." (Demurrer Opposition p. 4.) Plaintiff argues these allegations are against Defendant and "[t]he fact that they are pleaded

collectively does not permit the Court to disregard them.” (Demurrer Opposition p. 4.)

In

reply, Defendant repeats the argument the complaint fails to allege facts showing Defendant is personally liable and impermissibly lumps Defendant in with the other Defendants. (Reply pp. 2-3.)

In

the demurrer, Defendant cites the general rules applying to demurrers. (Demurrer pp. 4-5.) But Defendant cites no authority for the argument that the complaint is deficient because it impermissibly lumps Defendant together with the other Defendants. (Demurrer pp. 5-6.) Likewise, in the reply, Defendant fails to cite authority suggesting collective pleading is impermissible. (Demurrer Reply pp. 2-3.)

“Issues

do not have a life of their own: If they are not raised or supported by argument or citation to authority, they are waived.” (Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 852, brackets and ellipses omitted.)

Defendant

has waived the argument Plaintiff may not, as a matter of law, refer to Defendants as “Defendants” by not citing authority supporting that proposition.

The

court is also not persuaded Plaintiff may not, as a matter of law, refer to Defendants in the collective as opposed to spelling out each Defendants’ name individually in the complaint.

The

court interprets Defendant’s argument to be that Plaintiff may not, as a matter of law, refer to defendants in a complaint as “Defendants.” But this argument is inconsistent with Defendant’s reply, where Defendant concedes that “collective allegations may be appropriate in certain circumstances” but then argues that “they do not relieve Plaintiff of her obligation to plead facts establishing each defendant’s personal liability.” (Reply p. 2.)

Plaintiff

defines Defendants Group I El Monte Properties, LTD, Spartan Village APTS. 0340, LP, and Does 1 through 20 as "Defendants." (Complaint p. 2.) Plaintiff then alleges facts against "Defendants." (See, e.g., Complaint ¶¶ 15-18.) Having defined "Defendants", each reference to "Defendants" in the complaint thereafter is properly interpreted as referring to Defendants Group I El Monte Properties, LTD, Spartan Village APTS. 0340, LP, and Does 1 through 20, which includes Defendant, who was named as Doe 1. For example, Plaintiff's allegation regarding a written lease agreement is properly read as the following:

At

all relevant times, Defendants [Group I El Monte Properties, LTD, Spartan Village APTS. 0340, LP, Defendant, and Does 2 through 20] were aware of, authorized, and/or ratified Plaintiff's occupancy of the Subject Property during the term of each Defendants' [[Group I El Monte Properties, LTD, Spartan Village APTS. 0340, LP, Defendant, and Does 2 through 20] ownership, management and/or control of the Subject Property.

(Complaint  
¶ 16.)

Further,

Defendant fails to develop any argument showing any specific cause of action is deficient because it is, for example, missing an element as to Defendant.

Plaintiff's

complaint contains allegations against Defendant personally. The court need not address Defendant's arguments as to alter ego liability and veil-piercing.

(Demurrer pp. 6-8.)

The

demurrer is overruled.

VI.

MOTION

TO STRIKE

a. Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false,

or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437, subd. (a).)

A

motion to strike is appropriate to attack a claim for punitive damages. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 164.) "Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances set forth in Civil Code section 3294[.]" (Id. at pp. 163-164, brackets removed.) To justify a punitive damages award, the defendant must be "guilty of oppression, fraud, or malice." (Civ. Code, § 3294.)

Malice

is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) Oppression is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(2).) Fraud is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).)

"Punitive damages may not be pleaded generally." (Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1193.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages." (Grieves v. Superior Court, supra, 157 Cal.App.3d 159 at 166.) And "conclusory characterization of defendant's conduct as intentional, wilful and fraudulent is a patently insufficient statement of 'oppression, fraud, or malice, express or implied,' within the meaning of section 3294." (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (Grieves



v. Superior Court, supra, 157 Cal.App.3d at p. 166; Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority, supra, 83 Cal.App.5th at p. 1193 ["In addition to the requirement that the operative complaint set forth the elements as stated in section 3294, it must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages."].) 3

In Penner v. Falk (1984) 153

Cal.App.3d 858, 867, the Court of Appeal stated the pleadings adequately supported a punitive damages award because "[t]he pleadings sufficiently allege facts setting forth long existing physical conditions of the premises which portend danger for the tenants" and "[t]he pleadings also set out that respondents knew of those conditions for up to two years, had power to make changes, but failed to take corrective and curative measures." The Court stated that "[i]f proven, these allegations would support an award of punitive damages." (Id.)

#### b. Discussion

##### Defendant

moves to strike Plaintiff's allegations, references to, and prayer for punitive damages. (MTS pp. 2-3.) Defendant argues Plaintiff fails to allege specific facts supporting Plaintiff's request for punitive damages. (MTS pp. 6-7.) Defendant further argues Plaintiff fails to plead fraud, malice, or oppression giving rise to punitive damages. (MTS p. 8.)

##### Plaintiff

alleges she occupied the Property on or about January 10, 2015. (Complaint ¶ 15.) Plaintiff alleges she noticed a cockroach infestation on or about January 10, 2015 "and immediately notified management and/or their agents, of the vermin infestation. Yet, Defendants intentionally and willfully failed to remediate the uninhabitable conditions (specifically, cockroach infestation) at the Subject Property." (Complaint ¶ 52.) Plaintiff alleges she was able to address the infestation when she moved in but noticed a significant increase in cockroach activity on or about June 23, 2025. (Complaint ¶¶ 53-54.) "Over the following days, Plaintiff continued to observe an increase in cockroaches and notified Defendants' property manager, Maria del Carmen Abraham, in-person." (Complaint ¶ 54.) Plaintiff notified Abraham again by telephone on or about August 2025 and asked for the Property to be professionally fumigated.

(Complaint ¶ 55.) Plaintiff notified Abraham again on or about September 19, 2025, and renewed her request to have the Property professionally treated. (Complaint ¶ 56.) On or about October 2025, Abraham informed Plaintiff the Property would be professionally treated for cockroaches on a monthly basis. (Complaint ¶ 57.) An individual applied a liquid treatment in October 2025 and November 2025 “but did not return for any further treatments thereafter” and the infestation continued to worsen. (Complaint ¶ 57.) On or about December 25, 2025, Plaintiff notified Abraham again of the cockroach infestation and that the Property had not been treated in December. (Complaint ¶ 58.) On or about January 6, 2026, and February 5, 2026, Plaintiff filed complaints with the County of Los Angeles Department of Public Health to report the Property's conditions, including the cockroach infestation. (Complaint ¶¶ 59-60.) The County of Los Angeles Department of Public Health conducted an inspection on or about February 10, 2026, and noted the following violations:

“a.

Appliances – Unit: Observed malfunctioning oven in the kitchen; and b. Cockroaches – Unit: Observed excess amount of nymph and adult cockroaches throughout the kitchen.” (Complaint ¶ 61.) Plaintiff notified Abraham again about the infestation on or about March 24, 2026. (Complaint ¶ 62.) Plaintiff alleges that Defendants failed to take adequate measures to provide a solution and the “ongoing infestations has directly led to adverse health concerns for Plaintiff.” (Complaint ¶¶ 65, 69.)

Plaintiff

alleges long existing physical conditions of the Property which portended danger and that Defendant knew about the cockroach infestation for months before taking action. The court finds these allegations are sufficient under *Penner v. Falk*, supra, 153 Cal.App.3d at p. 867.

The

allegations concerning the cockroaches are incorporated into each cause of action. (Complaint ¶¶ 108, 121, 135, 141, 150, 163, 176, 200, 212, 224, 228, 236.) Defendant also specifically argues Plaintiff's claim for punitive damages related to the cause of action for intentional infliction of emotional distress is deficient because Plaintiff relies exclusively on claims Defendant was negligent. (MTS p. 9.) Defendant also argues Plaintiff fails to allege intentional or reckless behavior conduct. (MTS p. 9.)

In Stoiber

v. Honeychuck (1980) 101 Cal.App.3d 903, 912 the complaint alleged defective and dangerous conditions including "leaking of sewage from the bathroom plumbing; defective and dangerous electrical wiring; structural weaknesses in the walls; deteriorated flooring; falling ceiling; leaking roof; dilapidated doors; broken windows; and other unsafe and dangerous conditions." The Court of Appeal held:

[I]t is clear that the availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord's acts are extreme and outrageous and result in severe mental distress. Whether this is so under the present allegations, presents a factual question it cannot be said as a matter of law that appellant has not stated a cause of action.

(Id.  
at p. 922.)

Likewise,  
here, as noted above, Plaintiff alleges the presence of unsafe conditions that are similar to the allegations in Stoiber. Thus, the court is not persuaded by Defendant's argument Plaintiff's allegations are insufficient.

The  
motion to strike is denied.

## VII. CONCLUSION

For  
the foregoing reasons, the court overrules the demurrer and denies the motion to strike. Defendant is directed to file an answer within ten (10) days of this order.

Dated: August 3, 2026 \_\_\_\_\_ Hon.  
Eric Harmon

Judge of the Superior Court